

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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IN THE MATTER OF THE ESTATE OF KAWASKI
TRAWICK, BY ELLEN TRAWICK ADMINISTRATRIX,
MOTHER AND NATURAL GUARDIAN, AND ELLEN
TRAWICK AND FATHER, RICKY TRAWICK,

SUMMONS

Index No.

Date Purchased:

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER BRANDON
THOMPSON SHIELD #21768, POLICE OFFICER JOHN DOE
AND POLICE OFFICERS JIM DOE #1-10 (ALL SUED UNDER
FICTITIOUS NAMES BECAUSE THEIR IDENTITIES ARE
PRESENTLY UNKNOWN), ALL SUED AS POLICE OFFICERS
AND IN THEIR INDIVIDUAL CAPACITIES,

Defendants.

Plaintiffs designate Bronx
County as the Place of
trial.

The basis of the venue is
that County is the Place
where the cause of action
arose.

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To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiffs' Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service (30) days after the service is complete if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 26, 2020

Royce Russell
ROYCE RUSSELL, ESQ.
EMDIN & RUSSELL, LLP.
Attorneys for Plaintiffs
c/o Jeffrey L. Emdin, Esq.

330 West 38th Street, Suite 302
New York, New York 10018
(718) 785-8890

Defendant's address:

City of New York
c/o Office of the Corporation Counsel
100 Church Street, 4th floor
New York, New York 10007

The New York City Police Department
1 Police Plaza
New York, New York 10038

Police Officers John Doe and Jim Doe #1-10
c/o The New York City Police Department
1 Police Plaza
New York, New York 10038

Police Officer Brandon Thompson
Shield # 21768
c/o 46th Precinct
2120 Ryer Avenue
Bronx, New York 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
IN THE MATTER OF THE ESTATE OF KAWASKI TRAWICK,
BY ELLEN TRAWICK ADMINISTRATRIX, MOTHER AND
NATURAL GUARDIAN, AND ELLEN TRAWICK AND
FATHER, RICKY TRAWICK,

VERIFIED COMPLAINT
JURY TRIAL DEMAND

Index No.

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER BRANDON
THOMPSON, SHIELD #21768, POLICE OFFICER JOHN DOE
AND POLICE OFFICERS JIM DOE #1-10 (ALL SUED UNDER
FICTITIOUS NAMES BECAUSE THEIR IDENTITIES ARE
PRESENTLY UNKNOWN), ALL SUED AS POLICE OFFICERS
AND IN THEIR INDIVIDUAL CAPACITIES,

Defendants.

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The Plaintiffs, The Estate of Kawaski Trawick, by Ellen Trawick, Administratrix, and
Ellen Trawick, Ricky Trawick by their attorneys, Emdin & Russell, LLP, complaining of the
Defendants, respectfully alleges as follows:

PRELIMINARY STATEMENTS

1. Plaintiff as the Administratrix, of the Estate of Kawaski Trawick and as Mother and Natural Guardian as well as herself and husband Ricky Trawick bring this action for compensatory damages, punitive damages, equitable relief and accrued of costs, interest and such other relief as this Court deems equitable and just.
2. Due to the outrages and intentional acts of police misconduct, Kawaski Trawick was

battered, assaulted, illegally seized and subjected to excessive force which resulted in his wrongful death.

NATURE OF CLAIM

3. Plaintiff(s) also seek Redress under Article 1 Section 11 of the New York State Constitution for denial of Equal Protection and for torturous conduct against Kawaski Trawick by the Defendants through battery, assault, illegal seizure, excessive force, abuse of power and authority, conspiracy, wrongful death and Prima Facie Tort.
4. Plaintiff(s) seek redress for wrongful death, battery, assault and conscience pain and suffering violations pursuant to 42 U.S.C § 1983 and 1988, et reg. for violations of Kawaski's rights secured by the Fourth and Eight Amendments and Due Process clause of the Fourteenth Amendment of the United States.

JURISDICTION

5. This Court is empowered to preside over this matter because the incident arose in the County of the Bronx and Kawaski resided in the Bronx at the time of the incident.
6. This Court has pendent and supplemental jurisdiction over all claims asserted herein as to any Federal law claims.

VENUE

7. Venue is proper because all material events which led to the causes of actions herein described occurred in the County of the Bronx, State of New York.

JURY TRIAL DEMAND

8. Plaintiff(s) demands a trial by Jury of Claims pleaded herein:

PARTIES

9. Ellen Trawick is the Mother and Natural Guardian of Decedent, Kawaski Trawick and was appointed Administratrix of the goods, chattels credits of the Decedent, Kawaski Trawick, by order of the Surrogate Court of Bronx County on October 2, 2019.
10. The Decedent Kawaski Trawick resided at 1616 Grand Avenue, County of Bronx, City and State of New York. Ellen Trawick and Ricky Trawick reside in the State of Georgia.
11. This action against the herein named Defendants is brought by Ellen Trawick in the capacity as Administratrix on behalf of the Estate of Kawaski Trawick and herself and husband. All Plaintiffs are/were United States citizens.
12. That the Defendants, the City of New York, at all times hereinafter mentioned is a municipal corporation duly organized and existing under and by virtual of laws of the State of New York, and the Public employer of all named Defendants, the City of New York maintains a police force known as the New York City Police Department for which the “City”, its agents, servants and employees operated, maintained and controlled including all police officers, (Police Officers Brandon Thompson, John Doe and Jim Doe #1-10) thereof.
13. Upon information and belief, the New York City Police Department hereinafter referred to as “NYPD” is an agency of the “City”, existing and operating by virtue of the laws of the State of New York and the City of New York.
14. On April 14, 2019, Police Officers Brandon Thompson, John Doe and Jim Doe #1-10 were

assigned to the 46th precinct as they were employed as New York City Police Officers. The above-named Defendants “Thompson”, “John”, “Doe #1-10”, will be respectively and collectively referred to as “Officers”.

15. Defendants, Officers, are being sued in their individual and official capacities and all acted within the scope of their employment and under the color of state law, to with under color of statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.
16. Defendant, Thompson, at all relevant times was a police officer employed by Defendant, City, acting within his scope of employment and under the color of state law.
17. Defendant, John, at all relevant times was a police officer employed by Defendant, City, acting within his scope of employment and under the color of state law.
18. Defendants, Doe #1-10, at all relevant times, respectively, were police officers employed by Defendant, City, acting within the scope of their employment and under the color of state law.
19. Defendants, collectively, at all relevant times are still police officers employed by Defendant, the City of New York, acting within their scope of employment and under the color of state law.
20. That all named officers on the 14th day of April, 2019 at the hours of approximately 10:00 pm to 12:00 am were present in or near the vicinity of 1616 Grand Avenue, Bronx, New York, 10453 and were acting within the scope of their employment and under the direction of Defendants City and NYPD as their agents, servants and/or employees.
21. That the “Officers”, individually and collectively at all relevant times hereunder, acted as police officers and were required to follow the rules and regulations as contained in the New

York City Patrol Guidelines.

22. At all relevant times hereunder, Thompson, John and Jim #1-10 were acting within the scope of their employment as New York City Police Officers.

NOTICE OF CLAIM

23. Plaintiff(s) timely filed a Notice of Claim on or about July 12, 2019 against the Defendants, City of New York in compliance with General Municipal Law Section 50, stating the State law causes of actions.
24. An Amended Notice of Claim was filed on or about March 24, 2020, reflecting Police Officer Brandon Thompson, Shield #21768, John Doe and Jim Doe #1-10 as a named Defendants.
25. Ellen Trawick's 50H hearing was held on October 31, 2019 in accordance with General Municipal Law.
26. More than thirty (30) days has elapsed since service and filing of said Notice of Claim on July 12, 2019 and the Defendant, City of New York, has failed to pay or adjust the claim.

FACTUAL ALLEGATIONS

27. This action has been commenced within one (1) year and ninety (90) days after the happening of the events, upon which there claims arose.
28. That at all times hereafter mentioned, Defendants "Officers" were employed by the Defendant, the New York City Police Department, ("NYPD") on the 14th day of April, 2019.
29. That the Defendant, the City of New York ("City") its agents, servants and/or employees operated, maintained and controlled a police force known as the "NYPD" including all police

officers employed thereby on the 14th day of April, 2019.

30. On April 14, 2019, the Decedent, Kawasaki Trawick, at the approximate hours of 10:00 pm to 12:00 am, while cooking, locked himself out of his apartment. Upon realizing that he locked himself out of said apartment, he called the Fire Department of New York (FDNY).
31. That on April 14, 2019, the Decedent, Kawaski Trawick, had lawfully regained entry back into his apartment located at 1616 Grand Avenue, 4th Floor, Bronx County, after locking himself out while cooking.
32. Upon information and belief, during the time he was waiting for FDNY, he tried to get his neighbors and/or other residents to help him by banging on their doors.
33. Kawaski Trawick possessed a long stick in his hands as he walked the hallway looking for assistance.
34. Kawaski Trawick and the FDNY officers interacted without any threat of violence and with no incident.
35. The FDNY forced open Kawaski Trawick's apartment door for which he was allowed back inside.
36. Kawaski Trawick, prior to or immediately after FDNY's actions, talked with a Caucasian male resident before Kawaski Trawick himself re-entered his apartment. This conversation occurred without threat of violence and without incident.
37. After lawfully gaining access to his apartment, Kawaski Trawick never left his apartment and his door remained closed but unlocked.
38. Unbeknownst to Kawaski Trawick, the Defendant Officers were also called to the location.
39. Upon information and belief, Defendants Thompson and John arrived, responding to a 911

complaint at the location described as an Emotionally Disturbed Person (EDP) with a “long stick” banging on residents’ apartment doors.

40. Thompson and John, upon arriving at the location was escorted by the building Superintendent and/or Security to Kawaski Trawick’s apartment.
41. Upon information and belief, but for the Superintendent and/or building Security, Thompson and/or John did not speak to any resident prior to confronting Kawaski Trawick.
42. Upon arriving on the 4th Floor, the location of Kawaski Trawick’s apartment, the Defendants Thompson and John illegally entered Kawaski Trawick’s apartment, noting the apartment door was closed but unlocked.
43. Both Defendants were wearing body cameras which at least on body camera was activated.
44. Thompson and John allege that Kawaski Trawick possessed a knife and a long stick as he stood in his apartment.
45. Upon information and belief, Thompson and John allege they ordered Kawaski Trawick to drop the knife and/or long stick.
46. Thompson and John did not close the door of said apartment and/or radio for assistance or guidance from a Patrol Supervisor, Sergeant, ESU (Emergency Service Unit), HNT (Hostage Negotiation Team), TARU (Technical Assistance Response Unit) and/or any other unit that is trained in managing an EDP.
47. Thompson and John instead failed to adhere to the Police Patrol Guidelines and illegally entered Kawaski Trawick’s apartment when no emergency/exigent circumstances existed.
48. Thompson and John after ordering Kawaski Trawick to depose of the knife and/or stick, shot Kawaski Trawick with a taser.

49. Immediately after shooting Kawaski Trawick with a taser, Defendants then shot Kawaski four (4) times which resulted in his death.
50. Kawaski Trawick was in conscious pain and suffering until his death at a local hospital.
51. Said force was used unnecessarily and unjustified, and the Defendants', Thompson and John, conduct were negligent, reckless, excessive, unnecessary and in violation of the Police Patrol Guidelines, as well as in violation of Kawaski Trawick's State and Federal Constitutional rights.
52. The Defendants Thompson and John's respective misconduct and/or shooting of Kawaski Trawick was performed negligently carelessly, recklessly and without regard for human life.
53. Thompson and John's conduct and/or shooting was performed knowingly, intentionally and willfully.
54. The shooting was conducted without reason or provocation.
55. Said misconduct and/or shooting resulted in the death of the Plaintiff/Decedent, Kawaski Trawick.
56. As a result of the Defendants/Officers misconduct-shooting, Plaintiff/Decedent, Kawaski Trawick was caused to suffer severe physical injuries, pain and suffering resulting in his death as well as pre-death pain and suffering including emotional and psychological distress and horror.
57. The Defendants/Officers did not have probable cause to discharge their firearms.
58. The Defendants/Officers failed to adhere to the Police Patrol Guidelines which gave rise to their misconduct and/or discharge of their firearms resulting in Plaintiff/Decedent, Kawaski Trawick's death.

59. The Defendants/Officers failed to adhere to Patrol guidelines 203-11-Use of Force. The Defendants “Pledge to value human life and respect the dignity of each individual” here the Defendants/Officers were negligent. The Defendants negligently or otherwise failed to “preserve human life” a primary duty of all members of the New York City Police Department.
60. Thompson and John failed to achieve the primary duty of all members of the Police Department and that is to preserve human life. Thomas and John disregarded that the safety of all persons involved is paramount especially in cases involving what has been described as emotionally disturbed persons.
61. Thompson and John’s response to a 911 call for a disorderly male-EDP was grossly negligent, negligent, careless, and reckless and illustrates deliberate indifference and disregard for human life and all training received as New York City Police Officers given the particular scenario on the 14th day of April, 2019.
62. Once the Defendant/Officers encountered Kawaski Trawick inside of his apartment and found him to be allegedly armed and unwilling to go voluntarily, Thomas and John should have isolated and contained Kawaski Trawick.
63. Thompson and John negligently, carelessly, recklessly failed to contain and isolate Kawaski Trawick, for example closing his apartment door. The Officers specifically failed to adhere to Patrol Guideline 221-13.
64. Thompson and John negligently, carelessly and recklessly attempted to take Kawaski Trawick into custody without specific direction of a Patrol Supervisor and/or Sergeant, ESU team member, HNT team member or CIT (Crisis Intervention Training) team member.
65. Thompson and John failed to adhere to Patrol Guideline 221-13 UMOS Line #2A which states

in sum and substance that the officers should not try to take an EDP in custody who is armed or is unwilling to leave voluntarily.

66. Thompson and John negligently failed to request a Patrol Supervisor, Sergeant, ESU, HNT, CIT member and/or other qualified police personnel particularly trained with how to manage an EDP.
67. Thompson and John failed to use firearm control and failed to follow police patrol guide procedures on drawing a firearm prematurely pursuant to Patrol Guideline 221-01 page 3.
68. Thompson and John negligently, carelessly and recklessly failed to maintain a zone of safety.
69. Thompson and John negligently failed to use de-escalation procedures pursuant to Patrol Guideline 221-01 page 1. De-escalation includes not rushing to resolve a matter and allowing “time” to be an ally.
70. Thompson and John carelessly rushed to judgement and action, not utilizing “time” as a de-escalating tool.
71. Thompson and John failed to properly use non-lethal devices prior to discharging their firearms. Thompson and John failed to follow Patrol Guideline 221-01, drawing their firearms prematurely and failing to use all non-lethal options to preserve life.
72. Thompson and/or John was negligent when a gun and taser were both drawn simultaneously. Thompson and/or John failed to adhere to Patrol Guideline 221-08 pages 5-8, which states that a taser should be used in cycles of five (5) second rather than immediately discard and use deadly force – the discharging of a firearm.
73. Thompson and John used unnecessary excessive force by firing at Kawaski Trawick three (3) to four (4) times which resulted in his death.

74. Thompson and John exceeded the amount of force necessary against Kawaski Trawick.
75. Thompson and John knew that the Decedent, Kawaski Trawick, suffered mental and/or emotional problems based on the information the Defendants/Officers received from 911, the building Superintendent and/or Security at the location.
76. Thompson and John failed to use Deadly Physical Force as a last resort which is consistent with the NYPD policy and the law.
77. Thompson and/or John also failed to intervene each other in the use of deadly and excessive force which resulted in the death of the decedent, Kawaski Trawick.
78. Thompson and John knew or should have known that the Decedent, Kawaski Trawick, suffered mental and/or emotional problems given their responsibilities and duties as community police patrolling the area for which the Plaintiff/Decedent, Kawaski Trawick, resided.
79. Thompson and John failed to adhere to Police Patrol Guidelines 216-05- Mentally Ill or Emotionally Disturbed Persons effective prior to April 14, 2019.
80. Thompson and John failed to uphold Police Patrol Guidelines 216-05 primary duty which is to preserve human life.
81. Thompson and John's use of force was unnecessary and excessive given the Decedent, Kawaski Trawick, was not dangerous to him or others. At the time of Decedent Kawaski Trawick's demise he was alone, posing no threat to anyone, therefore, Thompson and John's fatal shooting was unnecessary, excessive and unwarranted.
82. Thompson and John failed to deploy probative devices such non-lethal devices like mace and/or shields to ensure the safety of all present.
83. Thompson and/or John failed to direct the other not to use their respective firearm or use deadly

physical force given their life nor the life of another was in imminent danger.

84. Upon information and belief, Thompson and John received CIT training and, if so, were negligent in failing to adhere to CIT training, procedures and protocols.
85. Thompson and John, if CIT trained, failed to “slow down” or de-escalate the situation to ensure that no one was injured.
86. Although CIT training has been established since 2015, the Defendants have not implemented said training within the entire NYPD.
87. The Defendants City and/or NYPD are negligent in that the Defendants have failed to expand CIT training to the entire police force.
88. The Defendant City and/or NYPD have failed to completely deploy CIT training. CIT training as only been deployed to one-third of the NYPD, as of March 2019.
89. The Defendants City and NYPD were negligent in that the Defendants failed to dispatch CIT trained officers to a scene involving an emotionally disturbed individual to ensure the preservation of life. The Defendants City and NYPD failed to send a genuine specialist.
90. The Defendants City and/or NYPD have failed to learn from the 2017 fatal shooting of Miguel Rodriguez, whereupon the officers failed to isolate and contain, de-escalate and slow down the situation by using “time” as an asset to preserve life.
91. In the Rodriguez’ fatal death, officers yelled and allowed the yelling at Rodriguez stating that “the situation would not end well – you are running out of time,” before Rodriguez was fatally shot.
92. The Defendant City and/or NYPD are grossly negligent, negligent, careless and reckless in that they fail to deploy CIT trained personnel to the scene of calls concerning EDP.

93. The Defendant City and/or NYPD have the responsibility to train and equip officers to manage EDP calls to ensure a response to calls for service which are measured and appropriate.
94. The Defendants City and/or NYPD failed to establish a different telephone number for EDP like 311, 411 or 911 to alert the trained officers and deploy said officers to ensure life and not careless, reckless or deliberate indifference to life.
95. The Defendant City and/or NYPD is aware and failed to act by way of reforms to confront the jump from 97,000 in 2009 to nearly 180,000 as of 2018 EDP related incidents/calls.
96. The Defendant City and/or NYPD have failed to establish a mental health unit to focus on policies and protocols related to mental health such as assigning help to the NYPD's officers and ESU.
97. Although the City created Thrive NYC after the fatal incidents of Saheed Vassell and Deborah Danner, Thrive NYC policies, protocols, and/or programs have failed to be thoroughly implemented and has only appeared as a pilot program in one precinct.
98. The Defendants City is negligent in failing to connect the newly created Co-Response Teams of police and mental health worker formed three (3) years ago with the 911 system.
99. The Defendant City and/or NYPD are negligent in NOT changing the culture of the NYPD to responding to EDP calls with compassion and the intentions of saving a life, as opposed to taking a life.
100. The Defendant City and/or NYPD have failed to respond to the Department of Investigation Report citing gaps in CIT training whereupon only 16,000 officers would be trained by 2021, therefore putting all EDP/civilians at risk until 2021.
101. An example of the above failure and negligence is illustrated in the death of Dwayne Jeune in

2017, whereupon, the officer who discharged his weapon was the only officer that did not receive CIT training.

102. The Defendants City and/or NYPD have failed to adhere to Public Advocate Jumaane Williams' proposal to create a dispatch system separate from 911 to handle certain calls involving people experiencing episode of mental illness to reduce police involvement.

103. As noted by the Office of Inspector General prior to the decision to implement CIT, NYPD's policies, procedures and training were inadequate to guide officers during EDP encounters and ensure the safety of those suffering from crisis.

104. In the instant matters, the Defendants City and NYPD and the Police Officers failed to adhere to the safeguards regarding the mental ill or EDPs pursuant to Section 937 and 958 of the New York State Mental Hygiene Law as well as Patrol Guideline Sections 216-22 (Mobile Crisis Outreach Teams and Assertive Community Treatment Teams).

105. Here, the Officers encountered no exigent circumstances that would prevented them from calling a Patrol Supervisor, Sergeant, ESU, HNT and/or any other specialized unit to assist with Kawaski Trawick.

106. The Defendants failed in assessing whether Kawaski Trawick was a threat given his prior interaction with the FDNY, resident neighbor, the fact that he was inside his apartment and was cooking which accounted for any possession of an alleged knife.

107. Kawaski Trawick not a threat to anyone he had prior contact with before the Defendants Thompson and John illegally entered his apartment.

108. The Defendants City and/or NYPD were negligent in that the 911 dispatcher failed to notify a Patrol Supervisor and/or a Sergeant to respond to the scene, or the Defendants Thompson and

John failed to wait for said Patrol Supervisor and/or Sergeant.

109. Thompson and John's failure to "slow down" the events in order to call ESU, which is comprised of tactical experts that also possess an elevated level of crisis communication skills and experience, was careless and reckless.
110. ESU consists of trained emergency psychological technicians who resolve a crisis without incident.
111. ESU is comprised of teams of highly trained personnel within their own command structure who provide state of the art equipment designed to enhance the ability to preserve and protect human life. NYPD relies on ESU's tactical expertise and psychological training to resolve crisis encounters as they escalate in degree of difficulty, and Defendants Thomas and John negligently, carelessly and recklessly did not use ESU.
112. The failure to contact HNT whose mission is to utilize advanced investigative and crisis negotiation strategies to diffuse potential violent situations with seasoned detectives who have a minimum of 12 years of investigative experience was negligent.
113. HNT detectives must have a proven track record of investigative success but must also illustrate empathy which is key in gaining voluntary compliance.
114. As stated previously, Defendants Thompson and John failed to use proper techniques to diffuse an alleged tense situation involving a person in mental crisis.
115. De-escalation is covered in many different training components, such as classroom academics, enhanced scenario-based training, physical and tactics training, firearms training and disorder control training, before resorting to deadly force. Defendants failed to use any de-escalating techniques.

116. Defendants Thompson and John failed to use a more persuasive and deliberate approach that includes emphatic communication taught by way of CIT training to gain voluntary compliance without resorting to commands or force.
117. Defendants Thompson and John were negligent in failing to use Policing Professionally De-escalating skills and Policing Emotionally Disturbed skills which trains officers on how to interact with the public and the appropriate use of force when necessary as well as the officer's responsibilities once an individual in crisis.
118. The Defendants City and/or NYPD have negligently failed to adjust its dispatch procedures to ensure that officers with CIT training are directed to crisis incidents.
119. The Defendants City and/or NYPD were negligent in that the Defendants have not dedicated a mental health unit or appoint a CIT coordinator to manage CIT training to ensure every officer is trained through a pairing of CIT personnel with Officers in crisis scenarios.
120. The Defendants City and/or NYPD were negligent in that they have not revised its Patrol Guidelines to require that CIT trained Officers respond to all crisis incidents.
121. That the alleged causes of actions pursuant to CPLR §1603 are exempt from operation of CPLR §1601, by reason of more of the exemptions provided by CPLR §1602.

DAMAGES

122. As a direct and proximate result of the said acts of the Defendants, Kawaski Trawick suffered the following damages:
- a) Violation of his rights under the First, Fourth, Eighth and Fourteenth Amendments to the Constitution;

- b) Loss of life and liberty;
- c) Discrimination based on race, gender and/or age;
- d) Pre death conscience pain and suffering;
- e) Emotional and psychological distress and horror;
- f) Loss of enjoyment of life;
- g) The right to be secure in his person and free from the use of unreasonable force;
- h) The right to due process of law.

123. As a direct and proximate result of the said acts of the Defendants, Ellen Trawick, Ricky

Trawick suffered the following damages:

- a) Physical and emotional trauma;
- b) Pain and suffering;
- c) Extreme emotional distress;
- d) Loss of Enjoyment of Life;
- e) Economic Damages including loss of income and support;
- f) Humiliation and embarrassment;
- g) Loss of love, nurture, care, services, affection and companionship.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF ELLEN TRAWICK,
AS ADMINISTRATRIX OF THE ESTATE OF KAWASKI TRAWICK
FOR WRONGFUL DEATH

124. The Plaintiff(s) repeats and realleges each and every allegation set forth above numbered “1” through “123” inclusive with the same force and effect as if more fully set forth at length herein.

125. That on April 14, 2019, Defendant Thompson, John and Doe #1-10, acting within the scope of their employment as a New York City Police Officers, aimed at, shot at and killed the decedent Kawaski Trawick inside the decedent's home.
126. The shooting was without probable cause and executed knowingly, intentionally and willfully.
127. The shooting of the Plaintiff, Kawaski Trawick, decedent, was performed negligently and recklessly.
128. The decedent had not committed a felony
129. The decedent had not committed a crime.
130. The decedent was lawfully in his home.
131. The Officers, were acting in their official capacities as New York City Police Officers and in the scope of their employment for the "City" and "NYPD" and under the color and authority of State law, regulations, ordinances, customs and usage, when they forcibly and illegally entered the home of Kawaski Trawick without a warrant and without permission or an invitation to enter.
132. The shooting of Kawaski Trawick was performed knowingly, intentionally and willfully.
133. The shooting was performed recklessly and in a manner that evinced a gross disregard to human life.
134. The Defendant Officers' actions/misconduct deprived the Plaintiff decedent Kawaski Trawick of the rights and privileges of the United States Constitution, the Fourteenth Amendment of the United States Constitution and 42 U.S.C §1983.
135. Plaintiff Decedent, Kawaski Trawick was deprived of his rights to due process law, his right

to be free from physical injury, seizure and the unwarranted use of physical force as well as his right to happiness, liberty and his right to life.

136. The shooting was performed without reason or provocation.

137. The aforementioned shooting resulted in the death of Kawaski Trawick.

138. Kawaski Trawick was survived by his parents, Ellen and Ricky Trawick.

139. Ellen and Ricky Trawick suffered a pecuniary loss, and a loss of assistance, a loss of future support and assistance and a loss of household services by reason of the death of their son, Kawaski.

140. The Defendants City and NYPD have, as a matter of policy and practice and with deliberate indifference, failed to adequately train, supervise, discipline, sanction or otherwise direct its police officers, including the “Officers” at the scene in this particular case, regarding the protection of the Constitutional Rights of Citizens and continue not to disclose the constitutional abuses, the use of excessive force and numerous other forms of police misconduct as well as the disciplinary/corrective measure and constitutional violations.

141. Such policy, practice and deliberate indifference have been highlighted in and by way the numerous lawsuits filed against the Defendants collectively in regard to police misconduct.

142. The failure to care, the Defendants NYPD and Officers misconduct and constitutional abuse has served as the proximate cause of the violation of Decedent, Kawaski Trawick’s rights on April 14, 2019.

143. By reason of the foregoing, the Plaintiff, Ellen Trawick, Administratrix, of the Estate of Kawaski Trawick, and Ellen Trawick and Ricky Trawick individually demand judgement for the wrongful death against the Defendants. The City and NYPD including but not limited to

Defendants Thompson, John and Doe #1-10 in a same exceeding the jurisdictional limits of all lower courts.

AND AS FOR A SECOND CAUSE OF ACTION FOR NEGLIGENCE ON BEHALF OF ELLEN TRAWICK, AS ADMINISTRATRIX OF THE ESTATE OF KAWASKI TRAWICK, DECEDENT

144. The Plaintiff(s) repeats and re-alleges such and every allegation set forth above numbered “1” through “143” inclusive with the same force and effect as if more fully set forth at length herein.

145. As a result of Thompson, John, Doe #1-10 and City’s recklessness, carelessness and misconduct, the death and injury suffered by Kawaski Trawick occurred and was solely caused by the aforementioned Defendants; said negligence, recklessness and carelessness and misconduct was performed through the City and NYPD’s agents, servants, employees and the police officers involved, Thompson, John, Doe #1-10 all vicariously and directly.

146. Said negligence as herein in paragraphs “1” though “143”, consisted of negligence in hiring, training, retraining, retention of police officers and/or Supervisors/Sergeants involved in this incident; supervision; negligence in failing to adhere to the existing police department Police Patrol Guidelines protocol as to the use of deadly lethal force causing the serious injuries, both physical and emotional resulting in death; failure to adhere to protocol as to how to effectuate an arrest of an mentally ill and/or emotionally disturbed person; failure to adhere to CIT training, procedures and protocols; failure to radio a Patrol Supervisor, Sergeant, ESU, HNT and/or CIT trained personnel, etc.; discrimination arising and resulting out of a shooting of the Plaintiff and further, deprived Plaintiff’s civil rights, privilege and immunities secured under the Constitution of the United States of America and State of New York; negligence in

failing to use care in performance of police duties for which a reasonable prudent and careful police officer would have used in similar circumstances, in hiring not training but retaining persons who were unfit to serve as Police Officers and/or Patrol Supervisor/Sergeant; negligence in failing to provide police officers and/or Detectives in the field as to how to effectuate the arrest of a civilian and/or a mentally ill and/or emotionally disturbed person in particularly with regards to the use of firearms in public; negligence in training police officers and/or Patrol Supervisor/Sergeant in the processing of a person suspected of violation of the criminal law of the State of New York which resulted in the shooting and the death of the Plaintiff, Decedent, Kawaski Trawick.

147. The Defendants City and NYPD through its agents, servants, employees and police officers involved, Defendants Thompson, John and Doe #1-10 were negligent, reckless and careless in shooting the Plaintiff, Decedent, Kawaski Trawick.
148. The “City” was further negligent in failing to properly investigate the shooting of the Plaintiff and said negligence, includes but no exclusive to, the failure to administrate proper Police Patrol Guidelines protocol among other guidelines outlined previously herein.
149. Due to the aforementioned negligence collectively, Plaintiff Decedent, Kawaski Trawick, was caused to suffer severe physical injuries, pain and suffering resulting in death, including pre-death pain and suffering emotional and psychological distress and horror.
150. As stated above, the shooting was performed knowingly, intentionally and willfully.
151. The shooting was without probable cause and/or the Defendant Officers created the circumstances for which they negligently used deadly force.
152. Thompson and John were acting within the scope of their employment with the Defendants

City and NYPD.

153. Upon information and belief, the decedent suffered conscious pain and suffering prior to his death.

154. By reason of the foregoing, the Plaintiff, Ellen Trawick as Administratrix of the Estate of Kawaski Trawick, and herself and husband demands judgment for negligence against the Defendants City, NYPD, including but not limited to, Police Officers Thomas, John and Doe #1-10 in a sum exceeding the jurisdictional limits of all lower court.

**AND AS FOR A THIRD CAUSE OF ACTION FOR NEGLIGENCE HIRING AND
RETENTION ON BEHALF OF ELLEN TRAWICK, AS ADMINISTRATRIX OF THE
ESTATE OF KAWASKI TRAWICK**

155. The Plaintiff(s) repeats and re-alleges such and every allegation set forth above numbered “1” through “154” inclusive with the same force and effect as if more fully set forth at length herein.

156. Defendants City and NYPD did not exercise reasonable care and diligence in the employment and training of its agents, servants, and employees and were negligent in the hiring, training and retention of the Defendants Thompson, John and Doe#1-10 so as to cause the death of Kawaski Trawick.

157. Defendant City and NYPD, upon information and belief, had prior knowledge of the inappropriate, unlawful and improper conduct of the Defendants Thompson, John and Doe #1-10 and nonetheless continued to employ said officers and allow them to be in contact with the public.

158. By reason of the forgoing, the Plaintiff(s), Ellen Trawick as Administratrix of the Estate of Kawaski Trawick, Decedent and on behalf of herself individually and husband demands

judgment for negligent hiring and retention against Defendant City, NYPD and Thompson, John and Doe #1-10 in a in a sum exceeding the jurisdictional limits of all lower court.

**AS AND FOR FOURTH CAUSE OF ACTION FOR BATTERY AND ASSAULT ON
BEHALF OF KAWASKI TRAWICK**

159. The Plaintiff(s) repeats and re-alleges such and every allegation set forth above numbered “1” through “158” inclusive with the same force and effect as if more fully set forth at length herein.

160. That on April 14, 2019 at approximately 11:08 p.m. and at all times hereinafter mentioned and upon information and belief Plaintiff Decedent, Kawaski Trawick was not without reason or provocation, resulting in death by the Defendant Officers including but not limited to Police Officers Thompson, John and Doe #1-10 as agents, servants and employees of the “City” and “NYPD”.

161. Said shooting was executed knowingly, intentionally and willfully.

162. Said “Officers” were acting within the scope of their employment with the Defendants “City” and “NYPD”.

163. That the shooting of the Plaintiff, Decedent, Kawaski Trawick, was without probable cause.

164. By reason of the battery and assault, Kawaski Trawick, Plaintiff, Decedent suffered physical injuries, pain and suffering resulting in death, including pre-death pain and suffering, emotional and psychological distress and horror.

165. By reason of the Plaintiff, Ellen Trawick as Administratrix of the Estate of Kawaski Trawick, deceased and on behalf of herself and husband individually demands judgment for battery and assault against the Defendants “Officers” in a sum exceeding the jurisdictional limits of

all lower court.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR PUNITIVE DAMAGES ON BEHALF
OF ELLEN TRAWICK, AS ADMINISTRATRIX OF THE ESTATE OF KAWASKI
TRAWICK**

166. The Plaintiff(s) repeats and re-alleges such and every allegation set forth above numbered “1” through “165” inclusive with the same force and effect as if more fully set forth at length herein.

167. The actions of the Defendants collectively herein alleged above, were malicious, willful and grossly negligent.

168. The “City,” “NYPD” authorized, and permitted the unlawful and negligent acts of the Defendant Officers Thompson, John and Doe #1-10, its servants, agents and employees herein above alleged.

169. By reason of the foregoing, Plaintiffs, Ellen Trawick as Administratrix of the Estate of Kawaski Trawick, deceased and on behalf of herself individually demands judgment for punitive damages against all Defendants in a sum exceeding the jurisdictional limits of all lower court.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR LOSS OF SERVICES ON BEHALF
OF ELLEN TRAWICK, MOTHER AND NATURAL GUARDIAN OF DECEDENT
KAWASKI TRAWICK**

170. The Plaintiff(s) repeats and re-alleges such and every allegation set forth above numbered “1” through “169” inclusive with the same force and effect as if more fully set forth at length herein.

171. At all times hereinafter mentioned, the Plaintiff, Ellen Trawick was the Mother and Natural

Guardian of Decedent, Kawaski Trawick, and was entitled to his services, society comfort, financial support, love and affection.

172. As a result of the Defendant's/Officer's negligence, battery, assault and the "City's" and "NYPD's" negligent hiring and retention, the Defendants collectively violated the Decedent's constitutional rights resulting in the death of Kawaski Trawick, and thus Plaintiff, Ellen Trawick has been deprived of the services, society comfort, love, financial support and affection from her son , Kawaski Trawick, in perpetuity.

173. By reason of the foregoing, Plaintiff, Ellen Trawick as Mother and Natural Guardian demands judgment on behalf of herself against the Defendants "City", "NYPD" and "Officers" collectively for loss of services, society comfort, financial support, love and affection from her son, in a sum exceeding the jurisdictional limits of all lower court.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR LOSS OF GUIDANCE ON
BEHALF OF ELLEN TRAWICK, MOTHER, RICKY TRAWICK FATHER, AND
NATURAL GUARDIAN OF DECEDENT KAWASKI TRAWICK**

174. The Plaintiff(s) repeats and re-alleges such and every allegation set forth above numbered "1" through "173" inclusive with the same force and effect as if more fully set forth at length herein.

175. At all times hereinafter mentioned, the Plaintiffs, Ellen Trawick as the Mother and Natural Guardian of Decedent, Kawaski Trawick, and Ricky Trawick who provided emotional support as well as love, care and moral guidance prior to his death.

176. As a result of the Defendants negligence and in violation of the Decedent's constitutional rights, Ellen/Ricky Trawick, has been deprived of the support, love, care, nature, physical,

emotional, financial support and moral guidance from her son in perpetuity.

177. By reason of the foregoing, Plaintiffs, Ellen Trawick as Mother and Natural Guardian of Kawaski Trawick, and Ricky Trawick Father, demands judgment for loss of guidance, support, love, care, nature, physical, emotional, financial support and moral guidance on behalf of herself against all of the Defendants in a sum exceeding the jurisdictional limits of all lower court.

AS AND FOR AN EIGHT THROUGH TENTH CAUSES OF ACTION ON BEHALF OF ELLEN TRAWICK, AS ADMINISTRATRIX OF THE ESTATE OF KAWASKI TRAWICK, ELLEN TRAWICK INDIVIDUALLY, AND RICKY TRAWICK INDIVIDUALLY AGAINST POLICE OFFICERS THOMAS, JOHN AND DOE #1-10, INDIVIDUALLY AND AS POLICE OFFICERS UNDER 42 USCA §§ 1983, 1985

178. The Plaintiff(s) repeats and realleges each and every allegation set forth above numbered “1” through “177” inclusive with the same force and effect as if more fully set forth at length herein.

179. That on April 14, 2019, the Defendants, acting under color of State law, within the scope of their employment/authority, violated the Federal and State civil and constitutional rights of the decedent, Kawaski Trawick, in that they:

- a) deprived the decedent of life and liberty without due process of law;
- b) entered the decedent’s home without an arrest or search warrant;
- c) entered the decedent’s home without probable cause;
- d) entered the decedent’s home without exigent circumstances;
- e) assaulted and battered the decedent;
- f) used excessive and deadly force against the decedent;
- g) conspired to cover-up the shooting of the decedent;

- h) illegally seized the decedent;
- i) racially profiled the decedent;
- j) profiled decedent based on age and gender;
- k) deprived the decedent of the right to be free from the intentional use of unreasonable force;
- l) deprived the decedent of the right to be free from the intentional use of excessive force;
- m) deprived the decedent of the right to be free from unreasonable search and seizure;
- n) violated the decedent right to privacy.

180. The Defendants, including the named Defendant Police Officers, at all relevant times hereunder acted within their authority as law enforcement officers within the employ of the Defendants, “City” and “NYPD”.

181. The Defendants conspired with one another to deprive Kawaski Trawick of his constitutional rights: to be free from the intentional use of force, to be free from unreasonable search and seizure, to be free from serious physical injury, to be free from discrimination, and to be secure in his person and free from unreasonable and excessive force.

182. The Defendants further violated the civil rights of the decedent by conspiring to cover up the facts and circumstances of the shooting.

183. The Defendants’ actions are not privileged or immune.

184. That said acts or actions resulted in unlawfully attempting to stop Kawaski Trawick, the unauthorized and unlawful entry into Kawaski Trawick’s home, a Fourth Amendment seizure of Kawaski Trawick, shooting Kawaski Trawick, and causing him conscience pain and

suffering, resulting in his death.

185. That by reason of his death, Kawaski, as well as his surviving parents, Ellen and Ricky Trawick, sustained a loss of enjoyment of life, including but not limited to loss of love, support, nurture, care, services, affection and companionship.
186. That the shooting and death of Plaintiff, Decedent, Kawaski Trawick, was in violation of his civil rights in particularly 42 U.S.C § 1983 as well as other applicable State and Federal laws including the First, Fourth, Eighth and Fourteenth Amendments of the United States Constitution.
187. That the depravation by the Defendants of the Plaintiffs' civil rights was a result of the Defendants, "City", "NYPD" and including but not limited to Police Officers Thomas, John and Doe #1-10 acting under color of law and within their authority as law enforcement officers within the employment of the Defendants, "City" and "NYPD".
188. The Defendant Officers conspired with one another to deprive the Plaintiff, Decedent, Kawaski Trawick, of his Constitutional rights: the rights to be free from the intentional use of unreasonable force; to be free from unreasonable seizure of the person, and unreasonable use of excessive force.
189. The Defendant Officers further conspired and violated the Plaintiffs' civil rights by conspiring to cover-up the shooting and death of the Plaintiff, Decedent, Kawaski Trawick. Defendant Officers engaged in a fabrication as to the acts and events leading to and the results of that the Defendant Officers actions were not privileged or immune.
190. The Defendants "City", "NYPD" and "Officers" collectively were not acting with immunity when they deprived the Plaintiff, Decedent, Kawaski Trawick of his civil rights.

191. By reason of the foregoing, the Plaintiff, Ellen Trawick as Administratrix of the Estate of Kawaski Trawick, deceased and on behalf of herself/husband individually demands judgment for civil rights violation against the Defendants, the “City”, “NYPD” and Defendant “Officers” Thompson, John and Doe #1-10 collectively in a sum exceeding the jurisdictional limits of all lower court.
192. The Plaintiffs seek damages as well as attorney’s fees, costs and punitive damages pursuant to 42 USCA §§ 1983, 1988.

AS AND FOR AN ELEVENTH CAUSE OF ACTION ON BEHALF OF ELLEN TRAWICK, AS ADMINISTRATRIX OF THE ESTATE OF KAWASKI TRAWICK, AGAINST POLICE OFFICERS THOMAS, JOHN AND DOE #1-10 INDIVIDUALLY AND AS POLICE OFFICERS FOR CONSPIRACY UNDER 42 USCA 1985, 1988

193. The Plaintiff(s) repeats and realleges each and every allegation set forth above numbered “1” through “192” inclusive with the same force and effect as if more fully set forth at length herein.
194. That on April 14, 2019, the Defendants, acting under color of State law, violated the Federal and State civil and constitutional rights of the Decedent, Kawaski Trawick, in that they conspired to cover-up the evidence, including that, upon information and belief, they knew of the glaring inconsistencies in the explanations of the shooting, had supervisory power over all the other officers present who participated in the cover-up and failed to meaningfully investigate their inconsistencies and false statement; and disregarded his obligation to be fully advised and to investigate and report such inconsistencies, and thereby neglected to prevent said conspiratorial acts. The Defendants collectively contaminated a crime scene by their careless, reckless and negligent safe guarding of said crime scene.

195. That said Defendants through their silence, acts, omissions, violence and threats, and false statements attempted to conceal the facts and circumstances of the shooting.

196. That the Defendants attempted to interfere with the Plaintiffs' due process rights to seek access to the Courts, or access to justice, as protected by 42 USCA 1985 (2,3) and by the First Amendment.

197. That by reason of the aforesaid, the Plaintiff, Ellen Trawick, on behalf of the Estate of Kawaski Trawick demands judgment against the Defendants in a sum exceeding the jurisdictional limits of all the lower courts on the Eleventh cause of action.

198. The Plaintiff, Estate of Kawaski Trawick seeks damages as well as attorney's fees, costs and punitive damages pursuant to 42 USC §§ 1985,1988.

WHEREFORE, the Plaintiffs, Ellen Trawick as Administratrix of the Estate of Kawaski Trawick, and herself/husband respectfully request damages as stated within the First Cause of Action to the Eleventh Cause of Action upon all causes of action against Defendants and as summarized and articulated below:

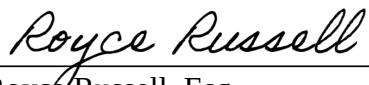
1. With respect to Defendants the "CITY", and "NYPD":
 - A) Declaratory judgement declaring that the City of New York and New York Police Department has violated the aforesaid laws; statues and constitutions;
 - B) Restitution to Plaintiff, Ellen/Ricky Trawick and Plaintiff Decedent of his rights, privileges, benefits and income which would have been received by him but for the Defendants' unlawful, wrongful, negligent, reckless torturous and unconstitutional conduct;
 - C) Compensatory damages in an amount to be determined by the court and jury;

- D) Punitive damages in the amount to be determined by the Court and jury;
 - E) Reasonable attorney's fees, disbursements and costs of their action pursuant to U.S.C. § 1983, 1988;
 - F) All legal and statutory interest on sums awarded;
 - G) Loss of life and liberty;
 - H) Loss of services and guidance;
 - I) Emotional and psychological distress and horror;
 - J) Loss of enjoyment;
 - K) The Right to Due Process of Law;
 - L) The right to be secure in his person and free from use of unreasonable force;
 - M) Pain and suffering; and
 - N) Such other and further relief as this Honorable Court may deem just, proper and equitable.
2. With respect to each Police Officer Defendants as Police Officers and individually;
- A) Declaratory judgment declaring that the Defendants/Police Officers have violated the aforesaid statutes, laws and constitutions;
 - B) Restitution to Plaintiff, Ellen/Ricky Trawick and Plaintiff Decedent of his rights, privileges, benefits and income which would have been received by him but for the Defendants' unlawful wrongful, negligent, reckless torturous and unconstitutional conduct;
 - C) Compensatory damages in an amount to be determined by the court and jury;
 - D) Punitive damages in the amount to be determined by the court and jury;

- E) Reasonable attorney's fees, disbursements and costs of their action pursuant to U.S.C. § 1983, 1988;
- F) All legal and statutory interest on sums awarded;
- G) Loss of life and liberty;
- H) Loss of services and guidance;
- I) Emotional and psychological distress and horror;
- J) Loss of enjoyment;
- K) The Right to Due Process of Law;
- L) The right to be secure in his person and free from use of unreasonable force;
- M) Pain and suffering; and

Such other and further relief as this Honorable Court may deem just, proper and equitable.

DATED: New York, New York
May 26, 2020



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ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am a partner in the law firm of Emdin & Russell, LLP, the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true. The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiffs is that the Plaintiffs do not reside in the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiffs and a reading of the documents in my case file. The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
May 26, 2020


By Royce Russell, Esq.